

TERMS & CONDITIONS

NAYLA Application

By Nectar Origin Private Limited

Effective Date: 09 May 2026

Version: 1.0

1. LEGAL AGREEMENT

These Terms & Conditions ("Terms") constitute a legally binding agreement between the user ("User", "you", or "your") and Nectar Origin Private Limited ("Company", "Nectar Origin", "we", "our", or "us") governing access to and use of the NAYLA Application ("Application", "App", "Platform", or "Services").

By downloading, installing, registering, accessing, or using the NAYLA Application, you acknowledge that you have read, understood, and agreed to be legally bound by these Terms.

If you do not agree with any provision of these Terms, you must immediately discontinue use of the Application.

2. COMPANY INFORMATION

Company Name

Nectar Origin Private Limited

Product Name

NAYLA

Business Nature

Business Management Software | Inventory Management | Sales & Distribution Automation

Contact Information

Email: care@nectarorigin.com

Website: www.nectarorigin.com

3. ELIGIBILITY

By using the Application, you represent and warrant that:

- You are at least 18 years of age;
- You possess the legal authority to enter into binding agreements;
- You are using the Application for lawful commercial or authorized purposes;
- All information provided by you is accurate, complete, and current.

The Company reserves the right to suspend or terminate access if any information is found to be false, misleading, or unauthorized.

4. APPLICATION SERVICES

The NAYLA Application provides software-based business management services which may include:

- Inventory management
- Sales and purchase tracking
- Billing and invoicing
- Distributor and retailer management
- Reporting and analytics
- Attendance and field activity tracking
- Business automation tools
- Cloud synchronization features

Features may vary depending on subscription plans, updates, or operational requirements.

5. USER ACCOUNT RESPONSIBILITIES

Users are solely responsible for:

- Maintaining confidentiality of login credentials;
- Restricting unauthorized access to their account;
- Ensuring proper use of the Application;
- All activities conducted under their account.

Users shall immediately notify the Company regarding:

- Unauthorized access;
- Security breaches;
- Suspected misuse of credentials.

Nectar Origin Private Limited shall not be liable for losses arising from unauthorized use of user accounts.

6. ACCEPTABLE USE POLICY

Users agree not to:

- Use the Application for unlawful purposes;
- Upload false, misleading, or fraudulent information;
- Attempt unauthorized access to systems or databases;
- Reverse engineer, copy, modify, distribute, or exploit the Application;
- Interfere with Application performance or security;
- Introduce viruses, malware, or harmful code;
- Use the Application in violation of applicable laws or regulations.

The Company reserves the absolute right to suspend, restrict, or permanently terminate access in case of violation.

7. DATA & CONTENT OWNERSHIP

Users retain ownership of business data uploaded by them.

However, by using the Application, users grant Nectar Origin Private Limited a limited, non-exclusive, revocable right to process, store, transmit, and use such data solely for:

- Providing services;
- System operations;
- Technical support;
- Analytics and performance improvement;
- Legal and compliance purposes.

The Company does not claim ownership over user-generated business data.

8. INTELLECTUAL PROPERTY RIGHTS

All intellectual property rights related to the NAYLA Application, including but not limited to:

- Software code
- Designs
- Logos
- Branding
- Graphics
- Features
- Databases
- Documentation
- Trademarks

shall remain the exclusive property of Nectar Origin Private Limited.

Users shall not copy, reproduce, modify, distribute, license, or commercially exploit any part of the Application without prior written authorization.

10. THIRD-PARTY SERVICES

The Application may integrate with third-party platforms, cloud providers, payment gateways, analytics tools, or external services.

Nectar Origin Private Limited shall not be responsible for:

- Third-party service interruptions;
- External platform failures;
- Independent privacy practices;
- Losses caused by third-party systems.

Use of third-party services shall remain subject to their respective terms and policies.

11. DATA SECURITY

The Company implements commercially reasonable security measures to safeguard information and maintain system integrity.

However, the User acknowledges that:

- No digital system is entirely secure;
- Internet-based services may experience interruptions;
- Unauthorized breaches may occur despite security measures.

Users are responsible for maintaining device and account security.

12. LIMITATION OF LIABILITY

To the maximum extent permitted under applicable law, Nectar Origin Private Limited, its directors, employees, affiliates, partners, or service providers shall not be liable for:

- Indirect or consequential losses;
- Loss of profits, revenue, or business;
- Data loss or corruption;
- Operational interruptions;
- Unauthorized access or cyber incidents;
- Errors caused by user misuse;
- Technical failures or downtime;
- Third-party actions or integrations.

The total liability of the Company, if any, shall not exceed the amount actually paid by the User for services during the preceding three (3) months.

13. INDEMNIFICATION

Users agree to indemnify, defend, and hold harmless Nectar Origin Private Limited and its officers, employees, directors, affiliates, and partners from and against any claims, damages, liabilities, losses, costs, or legal expenses arising from:

- Violation of these Terms;
- Misuse of the Application;
- Violation of laws or third-party rights;
- Unauthorized activities conducted through user accounts.

14. TERMINATION & SUSPENSION

The Company reserves the absolute right to:

- Suspend accounts;
- Restrict access;
- Delete data;
- Terminate services;
- Remove content;

without prior notice if:

- Users violate these Terms;
- Fraudulent activities are suspected;
- Security risks arise;
- Legal obligations require action.

Termination shall not affect accrued legal rights or obligations.

15. MODIFICATION OF SERVICES

Nectar Origin Private Limited reserves the right to:

- Modify Application features;
- Update software;
- Change pricing;

- Add or discontinue services;
- Restrict functionality;
- Conduct maintenance activities;

at any time without prior notice.

16. DISCLAIMER OF WARRANTIES

The NAYLA Application and related services are provided on an “AS IS” and “AS AVAILABLE” basis.

The Company expressly disclaims all warranties, whether express, implied, statutory, or otherwise, including but not limited to:

- Merchantability;
- Fitness for a particular purpose;
- Accuracy of information;
- Non-infringement;
- Uninterrupted or error-free operation.

The Company does not guarantee that the Application will always remain secure, uninterrupted, or free from defects.

17. GOVERNING LAW & JURISDICTION

These Terms shall be governed by and construed in accordance with the laws of India.

Any disputes arising out of or relating to these Terms or the Application shall be subject to the exclusive jurisdiction of the competent courts located in Bihar, India.

18. FORCE MAJEURE

Nectar Origin Private Limited shall not be liable for any delay, interruption, or failure in performance caused by circumstances beyond reasonable control including:

- Natural disasters
- Government restrictions
- Internet outages
- Cyberattacks
- Power failures
- Strikes
- Pandemic situations
- Technical infrastructure failures

19. CHANGES TO TERMS

The Company reserves the right to amend, modify, or replace these Terms at any time.

Updated Terms shall become effective immediately upon publication within the Application or official communication platforms.

Continued use of the Application after such updates constitutes acceptance of the revised Terms.

20. CONTACT INFORMATION

For support, legal communication, or queries regarding these Terms, contact:

Nectar Origin Private Limited

Email: care@nectarorigin.com

Website: www.nectarorigin.com

21. USER DECLARATION

By using the NAYLA Application, the User expressly confirms and declares that:

- The User has read and understood these Terms;
- The User voluntarily agrees to be legally bound by them;
- The User shall comply with all applicable laws while using the Application;
- The User accepts all operational, technical, and legal conditions associated with the use of the Platform.

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